

**\*\*July 23, 2024\*\***

**\*\*Sanctioning Regime for the Public Sector\*\***

Unlike the private sector, whose sanctioning regime is regulated by Article 83, paragraphs (4) and (5) of the General Data Protection Regulation (GDPR), in the case of the public sector in Romania, the sanctioning regime is distinct and phased, as regulated by Law no. 190 of July 18, 2018, as follows:

1. In the first phase, the legislator established that, in the event of a violation of the provisions of the GDPR and Law no. 190/2018 by public authorities and institutions, the National Authority for the Supervision of Personal Data Processing is required to first apply the sanction of a warning accompanied by a remediation plan, as provided by Article 13 of Law no. 190/2018.
2. In the second phase, subsequently, only if it is found that the public authorities/institutions have not fulfilled the measures established in the remediation plan, the National Authority for the Supervision of Personal Data Processing may apply the contraventional sanction of a fine, as established by Article 14 of Law no. 190/2018.

We specify that, in the public sector, fines start from 10,000 lei and can reach up to 200,000 lei, amounts established by Article 14 of Law no. 190/2018.

This different sanctioning regime for operators in the public sector has been regulated by Law no. 190/2018, based on the provisions of Article 83, paragraph (7) of the GDPR, which stipulates that each member state shall provide rules to determine whether and to what extent administrative fines may be imposed on public authorities and public institutions.

In this context, we emphasize that, in many member states of the European Union, fines are not applied in the case of public authorities/institutions.

At the same time, we mention that in press releases, the National Authority for the Supervision of Personal Data Processing mainly presents the fines applied, in a manner similar to other national data protection authorities in the European Union.

Regarding the warnings applied, we note that information is available in the annual activity reports, section "General Information" – "Public Interest Information" – "Annual Reports."

Thus, in 2022, 134 warnings were applied to operators in the public and private sectors, while in 2023, 186 warnings were applied.

**\*\*Legal and Communication Directorate\*\***

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